

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

Index#154783/2017

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ANGELICA MELO,**Plaintiff,****FIRST AMENDED
VERIFIED
COMPLAINT****-v-**

NYPD Police Officer ESTEFANY ROSARIO, Shield #25986, Individually and in her Official Capacity; NYPD Police Officer KEVIN PLATZ, Shield 19895, Individually and in his Official Capacity; SGT. First Name/Last Name and Shield unknown in his Individual and Official Capacity; and, SGT. KRISTIN BRITO, Shield #01477 Individually and in his Official Capacity; NYPD Police Officer Joseph LUCURTO, Shield #23024 Individually and in her Official Capacity; and, NYPD Police Officer Derrick LI Shield #23671 Individually and in his Official Capacity; and NYPD Police Officer Crystal DIAZ, Shield #1967 Individually and in her Official Capacity; and, NYPD Police Officer Nelson BATISTA, Shield #12074 Individually and in his Official Capacity ; and, NYPD Police Officer Klaudio KUSHI, Shield #19989 Individually and in his Official Capacity; and, NYPD Police Officer Jerold LUTZ, Shield #unknown, Individually and in his Official Capacity and, JOHN DOE 1-10, Individually and in their Official Capacities, and THE CITY OF NEW YORK,

Defendants.
-----X**PRELIMINARY STATEMENT**

1. This is an action brought to vindicate Plaintiff's rights New York State law and under for violations of Constitutional rights secured under color of statute, ordinance, regulation, custom, and/or secured to the plaintiff by the Fourth Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, through 42 U.S.C. Section 1983 and Section 1985 and 1986.
2. The State law claims in this action include False Arrest; Malicious Prosecution; Abuse of Process; Fabrication of Evidence; Assault, Battery; and, Negligence.

3. The Federal claims in this action include Violation of the Right to a Fair Trial and Fabrication of Evidence; False Arrest; Malicious Prosecution; and, violations of the civil and constitutional rights of the plaintiff due to the deliberate indifference of the City of New York to the Constitutional rights of the Plaintiff by failures of training, supervision and retention of Police Officers; there is a Monell claim based upon the policy and/or custom of the City of New York regarding the failure of training, supervision and discipline of police officers which resulted in violations of the civil and constitutional rights of the plaintiff (*see, Monell v. Department of Soc. Svcs.*, 436 U.S. 658 (1978)).
4. The Plaintiff (hereinafter, either "Angelica Melo," or "Ms. Melo"), was subjected to False Arrest in violation of the 4th Amendment, by the individually named officers who arrested her; Angelica Melo was maliciously prosecuted; evidence was fabricated against the plaintiff by the individually named officers in violation of both New York State tort law and in violation of her Due Process rights to a Fair Trial under the 6th and 14th Amendments of the United States Constitution and enforceable pursuant to 42 USC Section 1983.
5. The individually sued officer defendants engaged in a conspiracy was to cover-up their unlawful conduct, including submitting false reports to the prosecution and by custom and/or practice a failure to report and discipline the officers for their illegal and unconstitutional acts; the illegality involves violations of both New York civil laws which protect the community from unlawful police conduct and Constitutional rights enforced *via* the provisions of 42 U.S.C. raised by in this Verified Complaint.
6. The City of New York is liable under *respondeat superior* for the false arrest, malicious prosecution and other violations of New York State law; the City of New York is further liable for failing to properly train Police Officers, for failure to discipline Sergeants and Police

Officers for presenting false information to prosecutors and for falsely swearing to statements submitted to the Court in this case and innumerable other cases known of by the City of New York and its Agencies including but not limited to the Office of the Comptroller; the Office of the Corporation Counsel of the City of New York; the Office of Management and Budget of the City of New York; the Office of the Mayor of the City of New York and the New York City Police Department which have defended innumerable lawsuits for similar allegations of misconduct alleged by the Plaintiff in this Verified Complaint; the prior similar allegations which have resulted in litigation, settlements and jury verdicts in favor of plaintiff's have put the City of New York on notice of the claims alleged herein.

7. The City of New York fails to prosecute or otherwise discipline the police officers and police department members who submit false information and then swear or otherwise affirm to their truth and instead relies upon internal police department process that almost never result in prosecution for tendering false written statements to the prosecution and the Court.
8. The City of New York and its agencies and departments including the New York City Police Department engage in discriminatory investigation and enforcement of the laws when false statements are discovered to have been made under oath and/or which statements are material and relied upon by prosecutors and the courts: police officers who are found guilty generally suffer no more than "command level" punishments or loss of vacation days, whereas non-police civilians face criminal prosecution with significant losses including loss of liberty and civil rights. This two-tiered system is designed to and does send a message to police employees including the officers and the Sergeants involved in this law suit that they have been, are, and will be given special treatment and protection from charges related to the falsification of evidence. The lack of equal treatment for violating the law encourages police officers to engage

in the falsification and exaggeration of claims and evidence such as occurred in this law suit.

This two-tiered system has been known to the City of New York to result in the violation of the civil rights of civilians in the City of New York and it is the policy and practice of the City of New York to have a two-tiered system of justice as described herein. This policy and practice is one existing by custom and usage and it is one existing by virtue of the collective bargaining agreement which grants the top officials of the NYPD the power to determine discipline of officers who submit false statements as happened in this matter. The collective bargaining agreement and the practice of the NYPD and the City of New York created and/or encourage the differential treatment of police officers who violate the law from civilians who engage in substantially similar violations. The differential treatment is known to cause injuries such as those suffered by the Plaintiff herein.

9. In effect, the City of New York by its custom or practice and/or by its policy condones the creation of an unconstitutional two-tier system: a system in which the police are exempt from the penalties of the law which other citizens are required to obey under pain of humiliation, embarrassment, criminal conviction, jail, prison and, in the case of non-citizens, collateral consequences, such as removal from the United States, deportation and loss of opportunity.
10. The City of New York fails to discharge officers with a history of misconduct including making false arrests of persons including the plaintiff; the City of New York permits officers with a history of misconduct including making false statements to prosecutors to remain in contact with the public; and the City of New York continues to retain officers with a history of misconduct including the individually named officers who were involved in the arrest and prosecution of Angelica Melo.

11. Under the Federal causes of action, Ms. Melo seeks declaratory relief pursuant to 28 U.S.C. Sec. 2201, compensatory and punitive damages for violation of plaintiff's civil rights pursuant to 42 U.S.C. Sections 1985 and 1986 and an award of costs, disbursements and attorney fees under 42 U.S.C. Sec. 1988.
12. For the New York State causes of action, Ms. Melo seeks compensation in an amount in the amount in excess of the limitations of all lower courts.

Notice Of Claim and Conditions Precedent

13. On January 11, 2017, plaintiff caused a Notice of Claim to be served upon defendant THE CITY OF NEW YORK and on January 17, 2017, plaintiff caused an Amended Notice of Claim to be served upon the defendant THE CITY OF NEW YORK.
14. The Notice of Claims were delivered to the person designated by law as a person to whom such claims may be presented and served.
15. The Notice of Claim and the Amended Notice of Claim were in writing, sworn to by or on behalf of the Plaintiff, and contained the name and post office address of the Plaintiff and Plaintiff's attorney, the nature of the claim, the time when the place where and the manner by which the claim arose, and the damages and injuries claimed to have been sustained.
16. The City of New York failed to request a hearing pursuant to GML Section 50-h within 30 days of service of the Notice of Claim and has waived its right to a hearing under GML Section 50-h.
17. Defendant CITY OF NEW YORK has failed and refused to pay and/or adjust the claim within the statutory period of time.

18. This action has been commenced within one year and ninety days of the occurrences upon which the claims are based.

19. Plaintiff has complied with all conditions precedent applicable to the instant action.

20. This action is commenced within one year of the accrual of the cause of action for purposes of the cause of action brought pursuant to 42 USC Section 1985 and 42 USC Section 1986.

PARTIES

21. Angelica Melo was at all times relevant to this action, a resident of the County of Queens in the State of New York.

22. Defendant, THE CITY OF NEW YORK, is a municipal entity created and authorized under the laws of the State of New York and it was the employer of the defendant officers; the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation, policy and/or at the direction of the defendant City of New York.

23. The City of New York is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by New York City Police Department ("NYPD").

24. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant New York City Police Officer ("NYPD") ESTEFANY ROSARIO Shield #25986.

25. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant New York City Police Officer ("NYPD") KEVIN PLATZ, Shield 19895.

26. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant New York Police Department SGT. Kristin BRITO, Shield 01477.
27. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant New York City Police Officer ("NYPD") Joseph LOCURTO Shield #23024.
28. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant New York City Police Officer ("NYPD") Derrick LI Shield #23671.
29. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant New York City Police Officer ("NYPD") Crystal DIAZ Shield #1967.
30. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant New York City Police Officer ("NYPD") Nelson BATISTA Shield #12074.
31. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant New York City Police Officer ("NYPD") Klaudio KUSHI Shield #19989.
32. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant New York City Police Officer ("NYPD") LUTZ, Shield #unknown.
33. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant NYPD Police Officers JOHN DOE 1-10¹.
34. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant NYPD Sgt. First Name/Last Name and Shield unknown.

¹ The reference to "John Doe" is not to be construed as Plaintiff's assertion regarding the gender of the officers; furthermore, the City is placed on notice that the identities of the officers involved should be determined and that the Plaintiff intends to amend the Complaint so as to add the "John Doe" officers individually and to serve them in this action.

35. At all times relevant, defendant NYPD Police Officer Estefany ROSARIO, Shield #25986 was acting both in her individual and official capacities as an employees of defendant CITY OF NEW YORK.
36. At all times relevant, defendant NYPD Police Officer ("NYPD") Kevin PLATZ, Shield 19895 was acting both in his individual and official capacities as an employee of defendant CITY OF NEW YORK.
37. At all times relevant, defendant New York Police Department SGT. Kristin BRITO, Shield 01477 was acting both in his individual and official capacities as an employee of defendant CITY OF NEW YORK
38. At all times relevant, defendant NYPD Police Officer Joseph LOCURTO Shield #23024 was acting both in her individual and official capacities as an employees of defendant CITY OF NEW YORK.
39. At all times relevant, defendant NYPD Police Officer ("NYPD") Derrick LI Shield #23671 was acting both in his individual and official capacities as an employee of defendant CITY OF NEW YORK.
40. At all times relevant NYPD Police Officer Crystal DIAZ Shield #1967 was acting both in her individual and official capacities as an employee of defendant CITY OF NEW YORK.
41. At all times relevant, defendant NYPD Police Officer Nelson BATISTA Shield #12074 was acting both in his individual and official capacities as an employee of defendant CITY OF NEW YORK.

42. At all times relevant, defendant NYPD Police Officer Klaudio KUSHI Shield #19989 was acting both in his individual and official capacities as an employee of defendant CITY OF NEW YORK.
43. At all times relevant, defendant NYPD Police Officer LUTZ, Shield #unknown was acting both in his individual and official capacities as an employee of defendant CITY OF NEW YORK.
44. At all times relevant, defendant NYPD Police Officers JOHN DOE 1-10 were acting both in their individual and official capacities as employees of defendant CITY OF NEW YORK.
45. At all times relevant, defendant NYPD Sgt. First Name/Last Name and Shield unknown was acting both in his individual and official capacities as an employee of defendant CITY OF NEW YORK.
46. At all times herein, the individual defendant officers were acting under the color of their official capacity, and their acts were performed under the color of law.
47. At all times herein, the individual defendants were/are the servants, agents, and employees of their co-defendant the City of New York.
48. Notwithstanding the unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of the CITY OF NEW YORK.
49. At all relevant times, the defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.
50. Defendant NYPD Police Officer ESTEFANY ROSARIO Shield #25986 is sued in her individual and official capacity.

51. Defendant NYPD Police Officer ("NYPD") KEVIN PLATZ, Shield 19895 is sued in his individual and official capacity
52. Defendant New York Police Department SGT. KRISTIN BRITO, Shield 01477 is sued in his individual and official capacity.
53. Defendant NYPD Police Officer Joseph LOCURTO Shield #23024 is sued in his individual and official capacity.
54. Defendant NYPD Police Officer Crystal DIAZ Shield #1967 is sued in her individual and official capacity.
55. Defendant NYPD Police Officer Nelson BATISTA Shield #12074 is sued in his individual and official capacity
56. Defendant NYPD Police Officer Klaudio KUSHI Shield #19989 is sued in his individual and official capacity Derrick LI Shield #23671
57. Defendant NYPD Police Officer Derrick LI Shield #23671 is sued in his individual and official capacity.
58. Defendants NYPD Police Officers JOHN DOE 1-10 are sued in their individual and official capacity.
59. Defendant NYPD Sgt. First Name/Last Name and Shield unknown is sued in his individual and official capacity.

FACTS

60. On November 2, 2016 at approximately 10:00 P.M. the plaintiff ANGELICA MELO was inside of the subway station for the "L" train located at First Avenue and East 14th Street, in the City and State of New York, County of New York.

61. Defendant NYPD Police Officer ESTEFANY ROSARIO, Shield #25986 and two uniformed NYPD Police Officers whose names and Shield numbers are not currently known were on the platform of the "L" train located at First Avenue and East 14th Street in the City and State of New York, County of New York.
62. The Police Officers on the platform of the "L" train located at First Avenue and East 14th Street in the City and State of New York, County of New York were surrounding an African American male (hereinafter "male arrestee") believed to be the male arrestee named in a Criminal Court Information filed under New York County Criminal Court Docket # 2016NY065006.
63. While the African American male was surrounded by the Police Officers including Defendant NYPD Police Officer ESTEFANY ROSARIO, Shield #25986, a white male approached and Defendant Police Officer ETEFANY ROSARIO Shield #25986 repeatedly told him to "back up."
64. An African American female, believed to be the female arrestee named in the Criminal Court Information filed under New York County Criminal Court Docket # 2016NY065006 approached the African American male; this female walked between the male arrestee and Defendant ESTEFANY ROSARIO, Shield #25986.
65. Defendant NYPD Police Officer KEVIN PLATZ, Shield #19895 moved the African American female away; the African American female backed from the African American male; this female was pursued as she backed away by Defendant Police Officer ESTEFANY ROSARIO Shield #25986.

66. Defendant NYPD Police SGT. KRISTIN BRITO, Shield #01477 moved the African American female away; the African American female backed from the African American male; this female was pursued as she backed away by Defendant Police Officer ESTEFANY ROSARIO Shield #25986.
67. Defendant NYPD Police Officer Joseph LUCURTO, Shield #23024 moved the African American female away; the African American female backed from the African American male; this female was pursued as she backed away by Defendant Police Officer ESTEFANY ROSARIO Shield #25986.
68. Defendant NYPD Police Officer Crystal DIAZ, Shield #1967 moved the African American female away; the African American female backed from the African American male; this female was pursued as she backed away by Defendant Police Officer ESTEFANY ROSARIO Shield #25986.
69. NYPD Police Officer Nelson BATISTA, Shield #12074 moved the African American female away; the African American female backed from the African American male; this female was pursued as she backed away by Defendant Police Officer ESTEFANY ROSARIO Shield #25986.
70. NYPD Police Officer Klaudio KUSHI, Shield #19989 moved the African American female away; the African American female backed from the African American male; this female was pursued as she backed away by Defendant Police Officer ESTEFANY ROSARIO Shield #25986.
71. NYPD Police Officer Jerold LUTZ NYPD Police Officer moved the African American female away; the African American female backed from the African American male; this

female was pursued as she backed away by Defendant Police Officer ESTEFANY ROSARIO Shield #25986.

72. ANGELICA MELO, the plaintiff, watched the encounter between Defendant Officer ESTEFANY ROSARIO Shield #25986 and the female arrestee from a distance.

73. Police Officers handcuffed the male arrestee.

74. Defendant NYPD Police Officer KEVIN PLATZ, Shield #19895, handcuffed the male arrestee.

75. Defendant SGT. KRISTIN BRITO, Shield #01477, handcuffed the male arrestee.

76. Defendant NYPD Police Officer Joseph LUCURTO, Shield #23024, handcuffed the male arrestee.

77. Defendant NYPD Police Officer Derrick LI Shield #23671, handcuffed the male arrestee.

78. Defendant NYPD Police Officer Crystal DIAZ, Shield #1967, handcuffed the male arrestee.

79. Defendant NYPD Police Officer Nelson BATISTA, Shield #12074, handcuffed the male arrestee.

80. Defendant NYPD Police Officer Klaudio KUSHI, Shield #19989, handcuffed the male arrestee.

81. Defendant NYPD Police Officer Defendant NYPD Police Officer Jerold LUTZ, handcuffed the male arrestee.

82. Defendant Police Officer ESTEFANY ROSARIO, Shield #25986 pinned or otherwise had the female arrestee against the wall of the "L" train platform.

83. The African American female asked the police officers to examine her Metro card which would indicate that it had been swiped twice swiped 2 times (once for her and once for the African American male arrestee).
84. ANGELICA MELO, the Plaintiff remained on the "L" subway platform during the police activity involving the two arrestees.
85. Thereafter, additional uniformed officers arrived on the platform.
86. The additional officers who arrived on the platform after the African American male was handcuffed included NYPD Police Officer Keven PLATZ, Shield #19895.
87. The additional officers who arrived on the platform after the African American male was handcuffed included NYPD Police Officer Joseph LUCURTO, Shield #23024.
88. The additional officers who arrived on the platform after the African American male was handcuffed included NYPD Police Officer Derrick LI Shield #23671.
89. The additional officers who arrived on the platform after the African American male was handcuffed included NYPD Police Officer Crystal DIAZ, Shield #1967.
90. The additional officers who arrived on the platform after the African American male was handcuffed included NYPD Police Officer Nelson BATISTA, Shield #12074.
91. The additional officers who arrived on the platform after the African American male was handcuffed included NYPD Police Officer Klaudio KUSHI, Shield #19989.
92. The additional officers who arrived on the platform after the African American male was handcuffed included NYPD Police Officer Jerold LUTZ.
93. While Plaintiff, ANGELICA MELO remained on the platform two uniformed officers removed the African American male arrestee from the platform.

94. During and after the arrest of the African American male, the female African American female begged the officers including Defendant Police Officer ESTEFANY ROSARIO, Shield # 25986 to "please let him go" because he had not done anything wrong.
95. The African American female began to cry out, to cry and appeared to be having a panic attack regarding the arrest of the African American male.
96. Plaintiff Angelica Melo approached the African American female in an effort to calm her.
97. Plaintiff Angelica Melo briefly spoke with police officers, including Defendant Police Officer ESTEFANY ROSARIO, Shield #25986; and then walked away from the female arrestee and officers including Defendant Police Officer ESTEFANY ROSARIO, Shield #25986.
98. Plaintiff ANGELICA MELO was an arm's length or more from Defendant Police Officer ESTEFANY ROSARIO, Shield #25986 during her brief conversation with the police officers and did not jump between the female or male arrested and Defendant Police Officer ESTEFANY ROSARIO, Shield #25986.
99. Plaintiff ANGELICA MELO did not touch or push Defendant Police Officer ESTEFANY ROSARIO, Shield #25986.
100. Uniformed officers including Defendant New York Police Department SGT. KRISTIN BRITO, Shield 01477 arrived on the "L" train platform.
101. Following a brief discussion between New York Police Department SGT. KRISTIAN BRITO, Shield 01477 and Officer ESTEFANY ROSARIO Shield #25986, uniformed officers' handcuff and remove the female arrestee.

102. During a brief discussion with Defendant New York Police Department SGT. KRISTIN BRITO, Shield 01477, Defendant Police Officer ESTEFANY ROSARIO Shield #25986 tells the Sergeant "that woman is lying." referring to the plaintiff as a liar.
103. During a brief discussion with Defendant New York Police Department SGT. KRISTIN BRITO, Shield 01477, Defendant Police Officer ESTEFANY ROSARIO Shield #25986 tells the Sergeant "that woman is lying" referring to the plaintiff as a liar.
104. Defendant New York Police Department SGT. KRISTIN BRITO, Shield 01477 pointed to the plaintiff ANGELICA MELO and tells and/or motions for Defendant Police Officer ESTEFANY ROSARIO Shield #25986 to place the Plaintiff in custody.
105. The plaintiff ANGELICA MELO is surrounded by approximately 5 officers including Defendant Police Officer ESTEFANY ROSARIO Shield #25986.
106. In addition to Defendant NYPD Police Officer Estefany ROSARIO, Shield #25986, Plaintiff Angelica MELO was surrounded by NYPD Police Officer KEVIN PLATZ, Shield 19895.
107. In addition to Defendant NYPD Police Officer Estefany ROSARIO, Shield #25986, Plaintiff Angelica MELO was surrounded by NYPD Police Officer SGT. KRISTIN BRITO, Shield #01477.
108. In addition to Defendant NYPD Police Officer Estefany ROSARIO, Shield #25986, Plaintiff Angelica MELO was surrounded by NYPD Police Officer Joseph LUCURTO, Shield #23024.

109. In addition to Defendant NYPD Police Officer Estefany ROSARIO, Shield #25986, Plaintiff Angelica MELO was surrounded by NYPD Police Officer Derrick LI Shield #23671.
110. In addition to Defendant NYPD Police Officer Estefany ROSARIO, Shield #25986, Plaintiff Angelica MELO was surrounded by NYPD Police Officer Crystal DIAZ, Shield #1967.
111. In addition to Defendant NYPD Police Officer Estefany ROSARIO, Shield #25986, Plaintiff Angelica MELO was surrounded by NYPD Police Officer Nelson BATISTA, Shield #12074.
112. In addition to Defendant NYPD Police Officer Estefany ROSARIO, Shield #25986, Plaintiff Angelica MELO was surrounded by NYPD Police Officer Klaudio KUSHI, Shield #19989.
113. In addition to Defendant NYPD Police Officer Estefany ROSARIO, Shield #25986, Plaintiff Angelica MELO was surrounded by NYPD Police Officer Jerold LUTZ.
114. ANGELICA MELO is handcuffed on the platform of the "L" train and taken off the platform in police custody.
115. The Plaintiff, ANGELICA MELO was taken to a Precinct where she was processed as a common criminal.
116. At the Precinct, the Plaintiff, ANGELICA MELO was subjected to continuing harassment by Police Officers either with knowledge of her arrest or present during her arrest.

117. At the Precinct, Defendant Police Officer Crystal DIAZ, Shield #1967 asked the Plaintiff, ANGELICA MELO, whether she had “learned her lesson” or words to that effect.
118. At the Precinct, Defendant Police Officer Estefany ROSARIO, Shield #25986 asked the Plaintiff, ANGELICA MELO, whether she had “learned her lesson” or words to that effect.
119. At the Precinct, Defendant female Police Officer First Name Unknown/Last Name Unknown/Shield Number Unknown asked the Plaintiff, ANGELICA MELO, whether she had “learned her lesson” or words to that effect.
120. After her arrest, and while in Police custody, the harassment of the Plaintiff, ANGLICA MELO, included racial and sexual threats.
121. After her arrest, and while in Police custody, the harassment of the Plaintiff, ANGLICA MELO, included racial and sexual threats and a female Police Officer asked her “what would happen if you were being raped? Would we come to your assistance?” or words to that effect.
122. After her arrest, and while in Police custody, the harassment of the Plaintiff, ANGLICA MELO, included racial and sexual threats and Police Officer Police Officer Crystal DIAZ, Shield #1967 asked her “what would happen if you were being raped? Would we come to your assistance?” or words to that effect.
123. After her arrest, and while in Police custody, the harassment of the Plaintiff, ANGLICA MELO, included racial and sexual threats and Police Officer Police Officer Estefany ROSARIO, Shield #25986 asked her “what would happen if you were being raped? Would we come to your assistance?” or words to that effect.

124. When Ms. Melo arrives at Court she is informed that she is being charged with "Obstructing Governmental Administration." in violation of New York Penal Law Section 195.05.
125. The Criminal Court Complaint or Information sworn to by Police Officer ESTEFANY ROSARIO states "As I was trying to arrest separately charged defendants² the defendant jumped in between myself and separately charged defendant [redacted]. The defendant then pushed me away from separately charged [redacted] in an effort to prevent me from arresting defendant [redacted]. The defendant then stated to me in substance: "I just watched the documentary 13. I was just traumatized. I saw you as those white officers unfairly targeting black and Hispanics. I'm sorry. I thought I was being a humanitarian."
126. The allegations made by Defendant Police Officer Estefany ROSARIO, Shield #25986 in the Criminal Court Complaint or Information were untrue.
127. The statements which were affirmed to as true or otherwise stated to be truthful regarding the claim that the Plaintiff "jumped in between myself and separately charged defendant []. The defendant then pushed me away from separately charged [] in an effort to prevent me from arresting defendant []" were known to be untrue at the time that Defendant Police Officer Estefany ROSARIO, Shield #25986 signed the Criminal Court Complaint or Information.

² The names and arrest numbers have been redacted from the Complaint filed via ECF.

128. The Criminal Court Complaint was signed and sworn to by Police Officer Rosario on November 3, 2016 and states "False statements in this written instrument are punishable as a class "A" misdemeanor pursuant to section 210.45 of the Penal Law, and as other crimes."
129. Angelica MELO, the Plaintiff, was arraigned before the Criminal Court of the City of New York under New York County Docket #2016NY065006 on November 3, 2016.
130. Angelica MELO, the Plaintiff, was released in her own recognizance and ordered to appear back in the Criminal Court on November 22, 2016 and again on November 29, 2016.
131. On November 29, 2016 all charges were dismissed against the plaintiff ANGELICA MELO in open Court (Hon. Joanne Watters sitting in Part C of the Criminal Court of the City of New York, New York County).
132. The criminal proceeding against ANGELICA MELO was terminated in her favor.
133. There was no probable cause to arrest or commence criminal proceedings against ANGELICA MELO.
134. The criminal proceedings against ANGELICA MELO were commenced with malice.
135. Defendant, CITY OF NEW YORK, failed to properly train its police officers failed to discipline; and, failed to terminate or remove from public contact police officers who it knew, or should have known, were not fit to be police officers; this is part of a long standing policy by the CITY OF NEW YORK which is partly due to its contract with the Policeman's Benevolent Association that the CITY permits to control such things as retention of employees who have been found to have Constitutional and State laws prohibiting creation of false narratives and creating false paperwork to justify illegal arrests.
136. As a result of the foregoing the injuries suffered by plaintiff include serious injury,

humiliation, embarrassment, anxiety, and pain, loss of freedom and loss to reputation fear of loss of lawful immigration status; and, violation of her rights under the New York Constitution and civil rights laws of the City and State of New York.

137. Defendants knew or should have known that there was no lawful basis for seizing the person of the plaintiff and handcuffing and otherwise depriving the plaintiff of her rights to due process and fair trial as protected by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments.
138. That the arrest was initiated and continued without probable cause to believe any crime had been committed by the Plaintiff, Angelica MELO.
139. As a result of the afore-described actions, these defendants individually deprived the Plaintiff, Angelica MELO, of the right to be free from unreasonable search and seizures secured by the Constitution and laws of the United States and the 4th and 14th Amendments.
140. As a result of the afore-described actions, the defendant by and through the individually named officers deprived Plaintiff Angelica MELO, of her right to liberty without due process of law secured by the Constitution and laws of the United States and the Fourth and Fourteenth Amendments to the United States Constitution.
141. The unlawful arrest and use of excessive force of the Plaintiff violated her rights under the 4th 5th, 6th and 14th Amendments to the United States Constitution.
142. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.
143. Defendant, CITY OF NEW YORK, has sanctioned the policy and practices described in the above paragraphs through its deliberate indifference to the effect of said policy upon the constitutional rights of Plaintiff and others similarly situated.

144. The individual police officers who arrested Plaintiff conspired with each other to engage in the unlawful conduct including the unlawful stop of plaintiff and the falsification of evidence and cover up all in violation of the Plaintiff Angelica MELO'S rights under the 4th, 5th, 6th and 14th Amendments to the Constitution of the United States.

145. The individual police officers who arrested plaintiff had actual knowledge of the conspiracy to deprive persons at the aforementioned premises of their rights under the Constitution and each neglected and failed to prevent the interference with plaintiff's civil rights.

146. The afore-described constitutional violations are all actionable under and pursuant to 42 U.S.C., sections 1983 and 1985 and 1986.

147. The afore-described acts of the defendants was intentional, willful, and malicious and performed with reckless disregard for and deliberate indifference to plaintiff's rights.

First Cause of Action
Against The City of New York for False Arrest
under the laws of the State of New York

148. Plaintiff repeats and reiterates each and every allegation contained in paragraphs numbered "1" through "147" above as if fully set forth herein.

149. On November 2, 2016, while Plaintiff, ANGELICA MELO, was lawfully in the subway station at 1st Avenue and East 14th Street, in the County of New York, City and State of New York, she was unlawfully detained by police officers who were employees, agents and/or servants of defendant, CITY OF NEW YORK.

150. On November 2, 2016, while Plaintiff, ANGELICA MELO was lawfully in the subway station at 1st Avenue and East 14th Street and at other times and locations, during the period she was in police custody, in the County of New York, City and State of New York, she was

unlawfully subjected to an unlawful search and seizure by police officers who were employees, agents and/or servants of defendant, CITY OF NEW YORK.

151. That said unlawful detention and search and seizure was without justification and beyond the boundaries of reasonableness.

152. That Defendant, CITY OF NEW YORK, through its police officer agents, servants and/or employees, acted in bad faith and without justification in committing the aforesaid detention, search and unlawful imprisonment of Plaintiff.

153. That at the time of her unlawful imprisonment, Plaintiff had not committed any illegal act.

154. That at the time of her unlawful imprisonment, Plaintiff had not committed or attempted to commit any crime.

155. That there was no reasonable cause to subject Plaintiff to arrest.

156. That at the time of Plaintiff's unlawful imprisonment, defendants knew or should have known, through the exercise of proper police procedure and reasonable investigation, that the aforementioned imprisonment was false and without justification.

157. On the aforesaid date and place, the defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, intentionally confined the plaintiff ANGELICA MELO and/or restricted ANGELICA MELO's freedom of movement.

158. Plaintiff ANGLEICA MELO was conscious of said confinement and/or restriction.

159. Plaintiff ANGELICA MELO did not consent to said confinement and/or restriction.

160. The confinement and/or constriction was not otherwise privileged.

161. By the actions described above, the defendant, THE CITY OF NEW YORK caused ANGELICA MELO to be falsely imprisoned, falsely arrested, without probable cause, illegally and without an arrest warrant.

162. That said false imprisonment caused Plaintiff to suffer severe emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages and damage to her reputation.

163. As a result of the foregoing, Plaintiff ANGELICA MELO, demands judgment against the defendant CITY OF NEW YORK in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

Second Cause of Action
Against The City of New York for Assault and Battery
under the laws of the State of New York

164. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "163" as if more fully set forth herein.

165. On November 2, 2016, while Plaintiff, ANGELICA MELO, was lawfully in the subway station at 1st Avenue and East 14th Street in the County of New York, City and State of New York, City and State of New York, she was assaulted and battered by police officers employed by The City of New York without provocation.

166. As a result of the above-mentioned assault and battery, plaintiff, ANGELICA MELO, was injured.

167. As a result of the foregoing, Plaintiff, ANGELICA MELO., demands judgment against defendant(s) CITY OF NEW YORK in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

Third Cause of Action
Against The City of New York for Malicious Prosecution
under the laws of the State of New York

168. Plaintiff repeats and reiterates each and every allegation contained in paragraphs "1" through "167" as if more fully set forth herein.
169. On or about November 2, 2016, defendants did maliciously cause a criminal prosecution to be commenced against Plaintiff, ANGELICA MELO, by filing an accusatory instrument, without probable cause and in bad faith.
170. On or about November 3, 2016, defendants did maliciously cause a criminal prosecution to be commenced against Plaintiff, ANGELICA MELO, by filing an accusatory instrument, without probable cause and in bad faith.
171. The charges against Plaintiff, ANGELICA MELO, were dismissed.
172. In commencing and continuing said malicious prosecution, defendants caused Plaintiff, ANGELICA MELO, to be falsely charged with a crime in violation of the Penal Law of the State of New York.
173. Plaintiff had not committed any illegal act.
174. Plaintiff had not given defendants, its agents, servants and/or employees probable cause to believe that he had committed the illegal acts hereinafter complained of.
175. Defendants knew or should have known through the exercise of reasonable care and proper police procedure, that said investigation was flawed and incomplete.
176. Defendants, their agents, servants and/or employees willful and wrongfully accused Plaintiff of having committed a crime in violation of the Penal Laws of the State of New York.
177. As a result of the malicious prosecution, Plaintiff ANGELICA MELO, suffered and continues to suffer, substantial and permanent damages.

178. Said malicious prosecution caused Plaintiff, ANGELICA MELO, to sustain loss of income, to suffer severe emotional distress, fear of collateral consequences including loss of her lawful status as an intending immigrant, fear of removal from the United States, fear of loss of her ability to perform her work as a missionary, emotional disturbances, humiliation and damage to her reputation.
179. As a result of the foregoing, Plaintiff, ANGELICA MELO, demands judgment against defendants in a sum of money which exceeds the jurisdictional limits of all the courts of lesser jurisdiction.

Fourth Cause of Action
UNDER 42 U.S.C. SECTION 1983
(False Arrest, Malicious Prosecution, Excessive Use of Force,
Failure to Intervene, Fabrication of Evidence and Due Process Violations)
Police Officer Estafany Rosario Shield #25986 individually and in her official capacity
NYPD Police Officer KEVIN PLATZ, Shield 19895,
SGT. KRISTIAN BRITO, Shield 01477
NYPD Police Officer Joseph LUCURTO, Shield #23024
NYPD Police Officer Derrick LI Shield #23671
NYPD Police Officer Crystal DIAZ, Shield #1967
NYPD Police Officer Nelson BATISTA, Shield #12074;
NYPD Police Officer Klaudio KUSHI, Shield #19989
NYPD Police Officer Jerold LUTZ, Shield #unknown,
NYPD Police Officers JOHN DOE 1-10)
And THE CITY OF NEW YORK

180. By this reference, Plaintiff ANGELICA MELO incorporates each and every allegation and averment set forth in paragraphs "1" through "179" of this Verified Complaint as though fully set forth herein.
181. The conduct of the individually named defendant officers as described herein, amounted to false arrest, excessive use of force, failure to intervene, fabrication of evidence and violation of due process rights.
182. Such conduct violated Plaintiff's rights under 42 U.S.C. Section 1983 and the Fourth, Fifth, Sixth

and Fourteenth Amendments to the United States Constitution.

183. Consequently, Plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendants, individually and severally.

**Fifth Cause of Action
UNDER 42 U.S.C. SECTION 1983
Failure to Train and Municipal Policy**

184. By this reference, Plaintiff ANGELICA MELO incorporates each and every allegation and averment set forth in paragraphs "1" through "183" of this Verified Complaint as though fully set forth herein.

185. Defendant THE CITY OF NEW YORK, acting through the New York City Police Department, had actual and/or *de facto* policies, practices, customs and/or usages of failing to properly train, supervise or discipline its police officers concerning correct practices in conducting investigations, the use of force, obligation not to promote or condone perjury and/or assist in the prosecution of innocent persons and obligations to effect an arrest only when probable cause exists for such arrest.

186. Defendant THE CITY OF NEW YORK, acting through the aforesaid NYPD, had actual and/or *de facto* policies, practices, customs and/or usages of wrongfully arresting, assaulting and or maliciously prosecuting individuals who are members of racial/ethnic minority groups such as Plaintiff, who is Hispanic, on the pretext that they were involved in some crime or offense.

187. The existence of the aforesaid unconstitutional policies, practices, customs and/or usages may be inferred from repeated occurrences of similar wrongful conduct, as documented in the numerous civil rights actions filed against the City of New York in the state and federal courts.

188. The Defendant THE CITY OF NEW YORK maintained the above described policies, practices, customs and/or usages knowing fully well that the policies, practices, customs or usages lead to

improper conduct by its police officers and employees. In failing to take any corrective actions, defendant THE CITY OF NEW YORK acted with deliberate indifference, and its failure was a direct and proximate cause of Plaintiff's injuries as described herein.

189. By these actions, defendants have deprived the Plaintiff of rights secured by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as secured through 42 U.S.C. Section 1983.

Sixth Cause of Action

42 U.S.C. Sections 1985 and 1986

Police Officer Estafany Rosario Shield #25986 individually and in her official capacity
NYPD Police Officer KEVIN PLATZ, Shield 19895,
SGT. KRISTIAN BRITO, Shield 01477
NYPD Police Officer Joseph LUCURTO, Shield #23024
NYPD Police Officer Derrick LI Shield #23671
NYPD Police Officer Crystal DIAZ, Shield #1967
NYPD Police Officer Nelson BATISTA, Shield #12074;
NYPD Police Officer Klaudio KUSHI, Shield #19989
NYPD Police Officer Jerold LUTZ, Shield #unknown,
NYPD Police Officers JOHN DOE 1-10)
And THE CITY OF NEW YORK

190. By this reference, Plaintiff ANGELICA MELO incorporates each and every allegation and averment set forth in paragraphs "1" through "189" of this Verified Complaint as though fully set forth herein.

191. In an effort to find fault to use against Plaintiff, defendant officers conspired among themselves and conspired with other individuals to deprive Plaintiff of her Constitutional rights secured by U.S.C. Section 1983 and by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution and took numerous overt steps in furtherance of such conspiracy as set forth above.

192. In light of the foregoing therefore, defendant officers engaged in a conspiracy designed to deprive Plaintiff of her Constitutional and federal rights in violation of 42 U.S.C. Section 1985.

193. As a direct and proximate result of the misconduct and abuse of authority detailed above, the

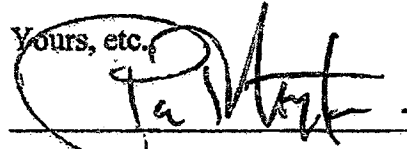
Plaintiff sustained the damages hereinabove stated.

WHEREFORE, the plaintiff demands judgment against the defendants and prays for relief as follows:

Judgment awarding damages in an amount to be determined by the trier of facts; punitive damages against the individually named defendants under the Fourth and Sixth causes of action; and, attorney fees as provided under 42 U.S.C. Section 1988.

And for such other and further relief as this Court may deem just and proper and equitable.

Dated: New York, New York
July 16, 2018

Yours, etc.,


PAUL THOMAS LAYTON
THE LAYTON LAW FIRM, PLLC
Attorney for the Plaintiff

OFFICE & P.O. ADDRESS
30 Vesey Street Suite -Suite 1801
New York, New York 10007
917-923-4287

ATTORNEY VERIFICATION

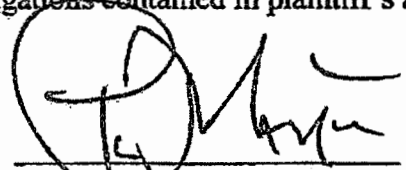
Paul Thomas Layton, an attorney at law, duly admitted to practice in the Courts of this State, affirms under the penalties of perjury that:

I am the attorney for the plaintiff in the within action and I am the owner of The Layton Law Firm, PLLC. I have read the foregoing First Amended Verified Complaint and know the contents thereof, and upon information and belief, I believe the matters alleged therein to be true.

The reason this verification is made by affirmant and not by the plaintiff is that the plaintiff herein is not currently in the County in which plaintiff's attorney maintains his offices.

The source of affirmant's information and the grounds for his belief are communications, papers, reports and investigations contained in plaintiff's attorney's files.

Dated: New York, New York
July 16, 2018



PAUL THOMAS LAYTON, ESQ.
THE LAYTON LAW FIRM, PLLC

**SUPREME COURT STATE OF NEW YORK
COUNTY OF NEW YORK**

Index#: 154783/2017

ANGELICA MELO,

Plaintiff(s),

-against

NYPD Police Officer ESTEFANY ROSARIO, Shield #25986, Individually and in her Official Capacity; NYPD Police Officer KEVIN PLATZ, Shield 19895, Individually and in his Official Capacity; SGT. First Name/Last Name and Shield unknown in his Individual and Official Capacity; and, SGT. KRISTIN BRITO, Shield #01477 Individually and in his Official Capacity; NYPD Police Officer Joseph LUCURTO, Shield #23024 Individually and in her Official Capacity; and, NYPD Police Officer Derrick LI Shield #23671 Individually and in his Official Capacity; and NYPD Police Officer Crystal DIAZ, Shield #1967 Individually and in her Official Capacity; and, NYPD Police Officer Nelson BATISTA, Shield #12074 Individually and in his Official Capacity ; and, NYPD Police Officer Klaudio KUSHI, Shield #19989 Individually and in his Official Capacity; and, NYPD Police Officer Jerold LUTZ, Shield #unknown, Individually and in his Official Capacity and, JOHN DOE 1-10, Individually and in their Official Capacities, and THE CITY OF NEW YORK,

Defendants

FIRST AMENDED VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130.1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: New York, New York
July 16 2018



THE LAYTON LAW FIRM, PLLC
by Paul Thomas Layton, Esq.

Attorney for Plaintiff(s)
Office and Post Office Address, Telephone
30 Vesey Street (Suite 1801)
NEW YORK, NY 10007
917-923-4287

Service of a copy of the within is hereby admitted.

Dated:.....20.....

NOTICE OF ENTRY